

Legal Aspects.

Date: _____

1) Criminal law

2) Civil law / Private law (court action under civil law is called litigation)

3) Public law

4) Substantive law

5) Procedural law

6) Public International law.

① Law of torts
(Civil wrong)

- Nuisance • Defamation
- Negligence • Trespass

• Constitutional law (work & relation of state)

• Administrative law

↓ makes income tax.
Law that government work on individual rights & duties.

(2) Law of Contract.

(3) Law of Property

(4) Law of Succession (devolution of property on death of owner)

(5) Family law

Public law

Substantive law

• Law b/w government & citizens.

Procedural law

• How to apply or enforce law

Public International law

• governs relationship b/w states

make laws

• Elements of state

① Legislature

② Executive

③ Judiciary

↓
implement laws

- Jurisdiction

• Original (1st time case settling)

• Appellate (When court give decision against subordinate court)

• Territorial (Area till court has ikhtar)

• Pecuniary (Financial limit till which the court can listen)

	Legal	Not Legal
Ethical	I	II
Not Ethical	III	IV

Date: _____

- Common law / case law
- Statute law / written law

⇒ IP Rights.

- - Intellectual Property is intangible.

• - Copy Rights.

- Knowledge vs Knowledge (gaining knowledge by not following laws)
 Prospecting (jaiz ilm hasil kerja) Piracy

- Nature / Scope of Copy right.
- Copyright works
- Duration of copyright. (life of author + 50 years)
- Registration (not required)
- Copyright notice (@ owner, year, All rights reserved)

- Copy = Infringement
 (- when full or half thing is copied.
 - Quality + Quantity both are seen)

• Secondary Infringement

- Import or export infringing copy
- Sell or by this copy

• Copyrights Ordinance / laws / act

- Criminal sanctions
- Civil remedies

® → registered trade mark.

Limited to journalism, education, research Date: _____

- - Fair Use. (exception in which copyright material can be used without permission)
 - Time Shifting (Record to can see later) ^{not} Commercial
 - Space Shifting (from one device to another copy)
 - Change of medium is still infringement.
- Licensee
- Open license (can use but have to give original source credit)

• - Confidential Information.

- Information that person receives in circumstances that make it clear

they must not pass it on (obligation of Confidence)

Confidential information (other) ≠ Professional Skill (mine)

• - Patents (Legal right to government for inventor for deti by (limited time 20 years))

• - Trademark (TM written on product)

- First to file (first registers)
- First to use (firstly use it)

Right trademark

- Strongest type (Invented word)
- Weakest type (Descriptive word)

• Renewal every 10 years.

Discipline
Advisory
Educational

Inspiration
Publicity.

Date: _____

- Trademark (Mark/logo for product)

- Service Mark (Mark/logo for service)

• Domain Names. — ICANN

- Often use trademarks as domain.

- Cyber Squatting (- dsri Company ke trademark ko apne domain name register karna) — Then sale that domain name to trademark owner more expensive.

• Registered designs & Trade Secrets.
↓

- Protects artistic feature of an object.

• - Layouts designs (designs of computer chips)

- Trade Secrets (e.s., formula of sports drinks)